



MONEY YOU'RE OWED

Surprise Medical Bill Rights Cheat-Sheet

Your rights under the No Surprises Act — and the exact steps to fight a wrong bill

You're probably protected. Here's when.

Since 2022, the **No Surprises Act** protects you in three situations:

1. **Emergencies** — covered at your **in-network rate**, no prior approval, even at an out-of-network ER. No balance bill.
2. **Out-of-network doctors at an in-network hospital** — anesthesiologists, radiologists, pathologists, neonatologists, assistant surgeons, hospitalists, intensivists, and lab/imaging. You pay **in-network cost only**; they **cannot balance bill** you.
3. **Air ambulance (out-of-network)** — no balance bill.

The trap: the notice-and-consent waiver

- A non-emergency out-of-network provider at an in-network facility **may ask you to sign a form** waiving these protections. **You can say no** and ask for an in-network provider. Read before you sign.
- **They can NEVER ask you to waive** for: emergencies, **anesthesiology, radiology, pathology, assistant surgeons, hospitalists/intensivists, and lab/imaging**. Even if you signed something, a bill from one of these is very likely still protected.

How to spot a wrong bill (check your EOB)

Pull up the **bill** and your **Explanation of Benefits (EOB)** — the EOB is *not* a bill. Red flags:

- Facility in-network, but the **provider listed out-of-network** for the same visit.
- Charged an **out-of-network rate** (e.g. 50%) when your in-network share is lower (e.g. 20%).
- "Balance due after insurance" for an **emergency** or a **hospital-based provider** above.

The 4 free steps to fight it

1. **Don't pay yet, don't ignore it.** Match the EOB to the bill; confirm the facility was in-network.
2. **Call your insurer** (number on your card). Say: *"I believe I'm protected by the No Surprises Act — please reprocess this at my in-network rate."* Get it in writing.

3. **Call the provider's billing office.** Same line; **dispute the balance bill** and ask them to **pause collections** during review.
4. **Escalate to the feds.** Call the **No Surprises Help Desk: 1-800-985-3059** (8am–8pm ET, 7 days) or file online at the CMS medical-bill-rights site. Have your **bill, EOB, any estimate, and any signed form** ready.

No insurance? (or paying cash) — the \$400 rule

- You're entitled to a written **Good Faith Estimate** before care.
- If the final bill is **\$400 or more above the estimate** (per provider/facility), you can dispute via **Patient-Provider Dispute Resolution** — file within **120 days**; a neutral reviewer can cut the bill toward the estimate. You only risk a small fee.

Official links (all free)

- **CMS Medical Bill Rights** (learn your rights + file a complaint): cms.gov/medical-bill-rights
- **No Surprises Help Desk:** 1-800-985-3059
- **PPDR questions:** FederalPPDRQuestions@cms.hhs.gov